

# Supreme Court of the State of New York

## COUNTY OF KINGS

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**RAFFIQUE N. KHAN,**

*Plaintiff*

*—against—*

**Summons**

**NEW YORK CITY;**

**ERIC L. ADAMS**, Mayor, New York City, in his official capacity;

**NEW YORK CITY POLICE DEPARTMENT (NYPD)**

**EDWARD A. CABAN**, Police Commissioner, in his official capacity;

**MICHAEL GERBER**, Deputy Commissioner of Legal Matters (DCLM), in his official capacity;

Inspector **ROHAN GRIFFITH**, Commanding Officer, 75<sup>th</sup> Precinct, in his official capacity

NYPD Officer **MATTHEW S. BESSEN**, Shield 14934; and

NYPD Officers John and Jane Does 1–10, who were directly involved in the arrest and imprisonment of Raffique N. Khan;

NYPD Officer Joseph Astarita; and NYPD employees John and Jane Does 1–10, of “DG\_LIC-Incidents,”

“DG\_LIC-Hearings-Appeals involved in refusing to return the firearms unlawfully seized from Plaintiff,

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To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action and to serve a copy of your Answer or, if the Verified Complaint is not served with the Summons, to serve a notice of appearance, on Plaintiff's Attorneys within 20 days after the service of the Summons, exclusive of the day of service (or within 30 days after the service is complete if the Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or

answer, a judgment will be taken against you by default for the relief demanded in this Verified Complaint.

Dated: Central Islip, New York  
June 14, 2024

/s/ CORY H. MORRIS

CORY H. MORRIS, Esq.

THE LAW OFFICES OF CORY H. MORRIS

*Attorney for Plaintiff*

863 Islip Avenue

Central Islip, NY 11722

Phone: (631) 450-2515

FAX: (631) 223-7377

Email: info@coryhmorris.com

VICTOR JOHN YANNAcone, JR, Esq., *of counsel*

Email: vyannacone@yannalaw.com

To: New York City, One Centre Street New York, NY 10007  
NYC Law Department, 100 Church Street New York, NY 10007

*On behalf of:*

NEW YORK CITY; ERIC L. ADAMS, Mayor, New York City, in his official capacity; NEW YORK CITY POLICE DEPARTMENT (NYPD); EDWARD A. CABAN, Police Commissioner, in his official capacity; MICHAEL GERBER, Deputy Commissioner of Legal Matters (DCLM), in his official capacity; Inspector ROHAN GRIFFITH, Commanding Officer, 75th Precinct, in his official capacity NYPD Officer MATTHEW S. BESSEN, Shield 14934; and NYPD Officers John and Jane Does 1-10, who were directly involved in the arrest and imprisonment of Raffique N. Khan; and NYPD Officer Joseph Astarita; and NYPD employees John and Jane Does 1-10, of "DG\_LIC-Incidents," "DG\_LIC-Hearings-Appeals involved in refusing to return the firearms unlawfully seized from Plaintiff,

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### VERIFIED COMPLAINT

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CORY H. MORRIS, Esq.

THE LAW OFFICES OF CORY H. MORRIS

*Attorney for Plaintiff*

863 Islip Avenue

Central Islip, NY 11722

Phone: (631) 450–2515

FAX: (631) 223–7377

Email: [info@coryhmorris.com](mailto:info@coryhmorris.com)

VICTOR JOHN YANNAcone, JR, Esq., *of counsel*

Email: [vyannacone@yannalaw.com](mailto:vyannacone@yannalaw.com)

## TABLE OF CONTENTS

|                                                                                                                                     |                                     |
|-------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------|
| Verified Complaint .....                                                                                                            | 2                                   |
| Venue and Administrative Remedies .....                                                                                             | 2                                   |
| The Plaintiff .....                                                                                                                 | 2                                   |
| <b>PLAINTIFF’S FIREARM PERMITS</b> .....                                                                                            | 3                                   |
| Defendants.....                                                                                                                     | 4                                   |
| Facts Common to all causes of Action .....                                                                                          | 6                                   |
| <b>THE ARREST OF RAFFIQUE N. KHAN</b> .....                                                                                         | 6                                   |
| <b>PROCESSING AND IMPRISONMENT OF RAFFIQUE N. KHAN</b> .....                                                                        | 8                                   |
| <b>MALICIOUS PROSECUTION OF RAFFIQUE N. KHAN</b> .....                                                                              | 9                                   |
| <b>SEIZURE OF FIREARMS FROM RAFFIQUE N. KHAN</b> .....                                                                              | 10                                  |
| <b>EFFORTS BY RAFFIQUE N. KHAN TO RECOVER HIS PROPERTY</b> .....                                                                    | 10                                  |
| <b>THE QUEST BY RAFFIQUE N. KHAN TO RECOVER HIS PROPERTY</b> .....                                                                  | 11                                  |
| <b>THE EMAIL EXCHANGES (EXHIBIT 12.)</b> .....                                                                                      | 12                                  |
| First Cause of Action: Violation of Property Rights Secured under the New York<br>State Constitution and Civil Rights Law § 4 ..... | 17                                  |
| <b>SEIZURE OF FIREARMS</b> .....                                                                                                    | 17                                  |
| <b>REFUSAL TO RETURN SEIZED PROPERTY</b> .....                                                                                      | 18                                  |
| Second Cause of Action: False Arrest and False Imprisonment .....                                                                   | 19                                  |
| Third Cause of Action: Abuse of Process.....                                                                                        | 21                                  |
| Fourth Cause of Action: New York State Constitution and New York Civil Rights<br>Law § 79-n .....                                   | 21                                  |
| Fifth Cause of Action: Civil Conspiracy .....                                                                                       | 23                                  |
| Sixth Cause of Action: New York State Law Malicious Prosecution .....                                                               | 25                                  |
| Seventh Cause of Action: Common Law and Constitutional Law Property Right<br>Violations .....                                       | 26                                  |
| Eighth Cause of Action: Assault and Battery .....                                                                                   | 27                                  |
| Ninth Cause of Action: Respondeat Superior .....                                                                                    | 27                                  |
| Prayer for Relief .....                                                                                                             | 28                                  |
| Plaintiff’s Verification .....                                                                                                      | <b>Error! Bookmark not defined.</b> |

**VERIFIED COMPLAINT**

Plaintiff Raffique N. Khan, (“Plaintiff”) by and through his attorneys, The Law Offices of Cory H. Morris, bring this action to redress the violation of Plaintiff’s rights under the Constitution and Laws of New York State, (and not the federal Constitution and thus provide no federal question(s) for which such a complaint is pending), complain of the Defendants, jointly and/or severally, individually and/or collectively, (“Defendants”) as follows:

**THE PLAINTIFF DEMANDS A TRIAL BY JURY****VENUE AND ADMINISTRATIVE REMEDIES**

1. Plaintiff is a resident of Queens County in New York City.
2. Defendants are residents of or have their principal place of business in New York City.
3. The occurrence(s) in this complaint stemmed from a traffic stop within the County of Kings, City of New York, State of New York.
4. Plaintiff timely noticed this matter pursuant to General Municipal Law Section 50, within ninety (90) days of all state law claims.
5. More than ninety (90) days have passed and no notice to have a hearing under General Municipal Law Section 50-h was served upon Plaintiff.

**THE PLAINTIFF**

6. At all the times relevant to this Complaint and at the present time, Plaintiff Raffique N. Khan was and he still is a citizen of the United States of America.
7. That Plaintiff Raffique N. Khan retired from the United States Army with the rank of Staff Sergeant (“SSGT”) on July 24, 2015 (**Exhibit 1**, DD-214) by reason of service connected disability as a result of wounds incurred during an insurgent attack on FOB Salerno, in Afghanistan, on June 1, 2012, “After a Suicide Vehicle Borne Improvised Explosive

Device destroyed the DFAC where he and his team were eating, SGT Khan extracted trapped personnel from the wreckage and initiated first aid on the wounded. He engaged advancing insurgents with M16 fire, and continued to provide security at an impromptu casualty collection point until the attack was defeated and the casualties evacuated. For his heroic actions, SGT Khan was awarded the Bronze Star Medal for Valor (**EXHIBIT 2**. Bronze Star citation) and the Combat Action Badge, and also received the Purple Heart (**EXHIBIT 3**. Purple Heart citation) for his injuries. (**EXHIBIT 4**, Veterinary Service News, May 2013)

#### **PLAINTIFF'S FIREARM PERMITS**

8. On April 11, 2023, New York City, through the 113 Precinct of the NYPD issued Lic: PR2023001500, a "Restricted Handgun License" for "Residential Premises" to Plaintiff Raffique N. Khan. (**EXHIBIT 5(a)**. Residential Premises Handgun License)
9. At all the times relevant to this State Complaint and at the present time, handgun license PR2023001500 is in full force and effect.
10. On September 1, 2023, New York City, through the 113<sup>th</sup> Precinct of the NYPD issued License: CB2023005726, a "Concealed Carry Handgun License" to Plaintiff Raffique N. Khan, (**EXHIBIT 5(b)**. Concealed Carry License), a property interest recognized by the NYS Constitution.
11. At all the times relevant to this State Law Complaint and at the present time, handgun license CB2023005726 is in full force and effect.
12. On September 13, 2023, the License Division of the NYPD issued a "Handgun Purchase Authorization" bearing Serial No. 308191 allowing Plaintiff Raffique N. Khan to purchase one handgun for permitted concealed carry and residential premises. (**EXHIBIT 5(c)**. Handgun Purchase Authorization)

13. Pursuant to that Handgun Purchase Authorization, Plaintiff Raffique N. Khan did purchase from Woodhaven Rifle & Pistol, an S&W “Equalizer” handgun, SKU# PJH 2036 which was similar to the handgun he used in combat during his service in the United States Army. (EXHIBIT 6. Handgun invoice)
14. Plaintiff Raffique N. Khan completed a “Concealed Carry Firearm 18 Hour Training Course for which he was issued a Certificate by Woodhaven Rifle & Pistol Range, Inc. (EXHIBIT 7. Certificate)
15. Raffique N. Khan is presently employed by the United States Department of the Interior National Park Service at the Gateway National Recreation Area in Staten Island as an Environmental Protection Specialist (EXHIBIT 8. USOPM Form 50) and carried his handgun pursuant to the permits issued to him since it was purchased.

#### DEFENDANTS

16. At all the times relevant to this Complaint and at the present time, Defendant **New York City** was and is the policy-making and governing body and authority over Defendant NYPD.
17. At all the times relevant to this Complaint and at the present time, Defendant **Eric L. Adams**, is the elected Mayor of New York City, and is the chief policy maker for the executive branch of New York City government, including the NYPD and, as such, is responsible for the practices and policies of the NYPD.
18. Defendant New York City Mayor, Eric L. Adams, is sued in his official capacity only.
19. At all the times relevant to this Complaint and at the present time, Defendant **Edward A. Caban** is the New York City Police Commissioner and as such is a policy maker and responsible for NYPD practices and policies.

20. Defendant Police Commissioner Edward A. Caban is being sued in his official capacity only.
21. At all the times relevant to this Complaint and at the present time, **Michael Gerber** is the New York City Deputy Commissioner of Legal Matters (DCLM), and, as such, among other responsibilities is in charge of handgun licensing, and as such is a policy maker in the New York City government.
22. At all the times relevant to this Complaint and at the present time, as the New York City Deputy Commissioner of Legal Matters (DCLM), Defendant Michael Gerber is responsible for the training and supervision of NYPD officers such as Defendant Officer Matthew S. Bessen and Officers John and Jane Doe 1–10 and, as such, Michael Gerber is a policy maker in the New York City government.
23. Defendant New York City DCLM Michael Gerber is being sued in his official capacity only.
24. At all the times relevant to this Complaint and at the present time, Defendant Inspector **Rohan Griffith**, is the Commanding Officer of the NYPD 75<sup>th</sup> Precinct and, as such, is responsible for the training and supervision of NYPD officers, including but not limited to, Defendant Officer Matthew S. Bessen and Officers John and Jane Doe 1–10.
25. Defendant Rohan Griffith is sued in his official capacity.
26. Defendant NYPD Officer **Matthew S. Bessen**, Shield № 14934 is a state actor.
27. Defendants NYPD Officers John and Jane Does 1–10, are known to the defendants, individually and collectively, as assigned and working out of NYPD 75<sup>th</sup> Precinct, but their identities are unknown to the Plaintiff at this time other than that they are in some way responsible for the



constitutional deprivations suffered by the Plaintiff Raffique N. Khan by arresting, processing, and imprisoning him.

28. NYPD employees John and Jane Does 1–10, together with NYPD Officer Astarita were involved in refusing to return the firearms unlawfully seized from Raffique N. Khan, are known to the defendants, individually and collectively, but their identities are unknown to the Plaintiff at this time other than that they are in some way responsible for the constitutional deprivations suffered by the Plaintiff Raffique N. Khan by unlawfully seizing and then refusing to return his property.
29. At all the times relevant to this Complaint and at the present time, each of the Defendants in some way specific to their positions in law enforcement deprived and denied Plaintiff Raffique N. Khan his New York State Constitutional and Civil Rights in the regular course of their employment and under the direction of their employer, and caused him harm, injury, and damage.

### **FACTS COMMON TO ALL CAUSES OF ACTION**

#### **THE ARREST OF RAFFIQUE N. KHAN**

30. On Sunday November 26, 2023 Plaintiff Raffique N. Khan was attending a small private function with family and friends commemorating what would have been his mother's 70<sup>th</sup> Birthday on November 24<sup>th</sup>, 2023. His mother had just recently passed away.
31. SSGT Khan, his cousin, and a friend took some food from the function and sat in SSGT Khan's car to eat and talk catching up on happenings since they last were together.
32. About 0315 while the three men were still talking in the 2022 BMW Series 3 owned by Plaintiff Raffique N. Khan bearing Purple Heart license plates, an unmarked Police Car drove past, slowed down, then drove on.

33. After sitting in his car for a while longer, SSGT Khan drove off with his cousin and friend toward his home in St Albans, Queens.
34. After SSGT Khan had been driving for a short time, he was stopped by the same unmarked police car he had observed earlier.
35. The officers never identified themselves to Plaintiff Raffique N. Khan and they were not in uniform.
36. Plaintiff Raffique N. Khan told Defendant NYPD Officer Matthew S. Bessen that he had a weapon (property) in the glovebox and the permits and licenses were in the sun visor of the car.
37. Plaintiff Raffique N. Khan always keeps his driver's license, insurance proof, registration, and Concealed Carry Handgun permit in the sun visor so that in the event he is stopped by police he can keep both hands on the wheel and not have to reach for anything.
38. Without any explanation for the traffic stop or any other explanation Defendant NYPD Officer Matthew S. Bessen told Plaintiff Raffique N. Khan to, "Step out of the vehicle."
39. Defendant NYPD Officer Matthew S. Bessen ordered Plaintiff Raffique N. Khan and his passengers to go the rear of the vehicle and then the officers started searching SSGT Khan's without asking permission, providing any explanation, and without any probable cause.
40. After approximately 30 minutes of searching, Defendant NYPD Officer Matthew S. Bessen and other officers handcuffed Plaintiff Raffique N. Khan his cousin, and his friend.
41. Defendant NYPD Officer Matthew S. Bessen looked at the Retired Military Identification of SSGT Khan and his Concealed Weapons Carry License and asked, "How did you get these?" but he was not interested in the answer provided by Plaintiff Raffique N. Khan.

42. At no time during the traffic stop did NYPD Officer Matthew S. Bessen ever provide Plaintiff Raffique N. Khan with a *Miranda* warning.
43. At no time from the traffic stop until Plaintiff Raffique N. Khan was imprisoned in a holding cell did anyone associated with the Defendant NYPD ever state what charges were being lodged against SSGT Khan.
44. Defendant NYPD Officer Matthew S. Bessen and the other officers at the scene of the traffic stop placed Plaintiff Raffique N. Khan, his cousin, and his friend in separate cars and transported them all to the 75<sup>th</sup> Precinct Station house.

#### **PROCESSING AND IMPRISONMENT OF RAFFIQUE N. KHAN**

45. Eventually, NYPD Officer fingerprinted SSGT Khan, his cousin, and his friend, took their personal belongings, and imprisoned them in a “holding” cell.
46. After being imprisoned in the holding cell for approximately four hours, NYPD Officers released the cousin and friend of SSGT Khan.
47. After being imprisoned in the holding cell for approximately eight (8) hours, Plaintiff Raffique N. Khan asked to make a telephone call but was told by a NYPD Officer that only the arresting officer could let him use the phone.
48. After being imprisoned in the holding cell for approximately twelve (12) hours, the arresting officer came back and told Plaintiff Raffique N. Khan he could use the phone after the detectives come in and questioned him. SSGT Khan again asked the Officer what the charges were, but they never told him.
49. Plaintiff Raffique N. Khan asked for a lawyer and none was ever provided. Neither was SSGT Khan allowed to make a phone call.

50. Eventually, hours later, a NYPD Office told Plaintiff Raffique N. Khan he was being taken to Central Booking in Brooklyn.
51. After Plaintiff Raffique N. Khan arrived at Central Booking, he was photographed and processed, but was never informed of the charges against him, nor was he allowed to make a phone call.
52. After being imprisoned for more than twenty-four (24) hours, Plaintiff Raffique N. Khan was told by a guard that the Courts were now closed and SSGT Khan would see a Judge in the morning.

### **MALICIOUS PROSECUTION OF RAFFIQUE N. KHAN**

53. At approximately 0800 the next day, a Legal Aid lawyer met with SSGT Khan and finally told him what the charges against him were. He was told that the District Attorney was requesting \$50,000 cash bail and \$100,000 in assets.
54. Plaintiff Raffique N. Khan was finally arraigned at 1500 on Monday, November 27, 2023 and the District Attorney was still seeking bail.
55. When the Legal Aid attorney assigned to SSGT Khan presented a copy of SSGT Khan's Concealed Carry License, the judge released Plaintiff Raffique N. Khan without bond to return on Friday, December 1, 2024.
56. At the time of his release by the Court, Plaintiff Raffique N. Khan had been imprisoned and held incommunicado for over thirty-four (34) Hours from the time of his arrest.
57. During the time that Plaintiff Raffique N. Khan was being imprisoned and held incommunicado he was unable to communicate with his teenage children alone in his home in Queens or with his federal government employer.

58. During the time that Plaintiff Raffique N. Khan was being imprisoned and held incommunicado he was actually marked AWOL (absent without leave) from his federal job.

### **SEIZURE OF FIREARMS FROM RAFFIQUE N. KHAN**

59. During the period that Defendant NYPD withheld the wrongfully and illegally seized government issued cellphone and federal ID of Plaintiff Raffique N. Khan, he was unable to gain access to his federal job site at Fort Wadsworth and was forced to notify his federal chain of command of his arrest and seizure of his weapon.
60. On Monday, November 27, 2023, Plaintiff Raffique N. Khan called the NYPD licensing Division and was advised to surrender property, a Smith & Wesson MP9 Model NML8334, to the (local) 113 NYPD Precinct for safe keeping. He did. (Exhibit 10. Safe Keeping invoice)

### **EFFORTS BY RAFFIQUE N. KHAN TO RECOVER HIS PROPERTY**

61. On November 27, 2023, Plaintiff Raffique N. Khan returned to the 75<sup>th</sup> Precinct to recover his personal property which had been seized on his arrest. He was unable to retrieve his personal belongings at that time.
62. On November 28, 2023, Plaintiff Raffique N. Khan returned to the 75<sup>th</sup> Precinct but was told to come back at a specific time which he did. However, the Officer was not there.
63. On November 29, 2024, Plaintiff Raffique N. Khan again went to the 75<sup>th</sup> Precinct and was told to go to 11 Front Street.
64. As instructed, Plaintiff Raffique N. Khan tried to obtain his personal belongings from the NYPD facility at 11 Front St. but he was told that his belongings were still at the 75<sup>th</sup> Precinct police station.
65. Returning to the 75<sup>th</sup> Precinct police station, Plaintiff Raffique N. Khan was finally able to retrieve his Chain, bracelet and other jewelry but was

- unable to recover his car, his personal cell phone, his government cell phone, his Government Work Id, his cash and other personal property.
66. Plaintiff Raffique N. Khan returned several times to the 75<sup>th</sup> Precinct police station but each time he was told he had to come back when the arresting officer was there.
67. Finally, the Legal Aid Attorney assigned to represent Plaintiff Raffique N. Khan intervened and SSGT Khan was able to retrieve most of his personal belongings on December 1, 2023. However, his personal cell phone was missing.
68. Plaintiff Raffique N. Khan eventually recovered the cash that had been seized from him but his cell phone was not released to him until January 11, 2024.
69. In Court on December 1, 2023, the County of Kings, Assistant District Attorney requested more time to verify that Plaintiff Raffique N. Khan had an active Concealed Carry Handgun permit and the criminal case against Plaintiff Raffique N. Khan was continued to February 24, 2024.
70. On the evening of February 23, 2023, Plaintiff Raffique N. Khan received an electronic mail from the same district attorney advising him that the case was dismissed and all charges had been dropped.
71. A notice of claim was filed and served shortly thereafter.

#### **THE QUEST BY RAFFIQUE N. KHAN TO RECOVER HIS PROPERTY**

72. After dismissal of all the criminal charges against Plaintiff Raffique N. Khan began a quest to recover the property which the NYPD had seized.
73. In the quest to recover his property, Plaintiff Raffique N. Khan first contacted the NYPD on February 26, 2024 after he had obtained a copy of the criminal disposition form from the Court at which time an

“investigating” officer told him to write a “statement.” He did as instructed, but never received any response from NYPD.

74. In the quest to recover his property, Plaintiff Raffique N. Khan returned to the 75<sup>th</sup> Precinct police station on March 8, 2024 with the disposition stating all charges were dropped but he was told that the Kings County Assistant District Attorney had to send a release for the weapon.
75. In the quest to recover his weapon, Plaintiff Raffique N. Khan was told by NYPD Officers that they had received the release and he was directed to go to 11 Front St. to pick up his weapon. At 11 Front Street, SSGT Khan was told that even though the DA released the weapon NYPD had to complete an investigation by the licensing division.
76. On March 11, 2024, attorney Cory H. Morris wrote to a number of NYPD agencies (EXHIBIT 11. Letter to NYPD) publicly identified as dealing with firearms requesting return of the property seized from Plaintiff Raffique N. Khan. Attached to that letter and submitted with it were a Litigation Hold Notice, and a number of documents some of which are attached to this Complaint and all of which clearly indicate that seizing the weapons owned by SSGT Khan was unlawful and indicating that SSGT Khan had a valid New York City Concealed Carry Handgun License at the time of his arrest which was still valid and in full force and effect.
77. Not until filing a federal Complaint, the New York City Police Department did not return property they had illegally seized from Plaintiff Raffique N. Khan. Upon its return, the property was defaced:

#### **THE EMAIL EXCHANGES (EXHIBIT 12.)**

78. On February 23, 2024 Plaintiff Raffique N. Khan was advised by email from the Kings County Supreme Court Criminal Term that the case against him had been “dismissed and sealed” on the representation by

the People, “that the defendant is a federal officer working on an Army base and has active carry and conceal permits.”

79. On February 27, 2024, Plaintiff Raffique N. Khan wrote to NYPD Officer Astarita that the criminal charges against him had been dismissed and he attached the appropriate Disposition form.
80. On March 6, 2024, NYPD Officer Astarita replied, “Received, thank you.”
81. On March 8, 2024, Plaintiff Raffique N. Khan emailed NYPD Officer Astarita requesting authorization for release of his firearms.
82. On March 13, 2024, Plaintiff Raffique N. Khan again emailed NYPD Officer Astarita requesting authorization for release of his firearms.
83. On March 14, 2024, NYPD Officer Astarita replied by email stating, “Maybe you are not aware of the process regarding your incident. While I have received your recently delivered documents, that does not mean you get your firearms back right away. Your incident is in investigation. When I finish my investigation, it will then be sent to numerous supervisors who will then make a determination. At that time, you will be notified by mail and directed to call for a release and license, if your license is continued. In the meantime, be patient as I hope to have your case completed by midweek next week and then sent on to the supervisors.”

#### **DEFENDANTS OBSTRUCTED RETURN OF SSG KHAN’S FIREARMS**

84. On or about March 14, 2024. Plaintiff Raffique N. Khan received the following E-mail instructions from his Legal Aid Society attorney:  
“...the ADA has agreed to release all of the property under those vouchers. So the process will be the same as for your phone. When you are at the precinct, call 718–250–3550/3552/3553 and they will send the release to the precinct at that time. If the items have been moved to 11 Front Street (which is possible given how long ago the arrest was), then Front Street is open 8–230 and you would need to go there and call the



same numbers to have the release sent when you are there. The gun 3001668962 is located at 11 Front St, voucher 3001668999 ... documents, also located at 11 Front St. The other voucher 4001052896 is at the Queens Property Clerks' office 125-01 Queens Blvd Room G3. So just call the numbers I gave you when you get to the Qns [sic] location and Front Street."

85. After Plaintiff Raffique N. Khan followed those instructions, but although the ADA sent the release, Defendants City/NYPD officials stated that the "license and division have to get back to them first, then make a determination. At that time, you will be notified by mail and directed to call for a release and license, if your license is continued. In the meantime, be patient as I hope to have your case completed by midweek next week and then sent on to the supervisors."

86. On or about April 2, 2024, Plaintiff Raffique N. Khan E-mailed Defendant Joseph Astarita asking for help,

I received a letter from Sergeant Brian Herbert from the NYPD Pistol License Division. The letter stated that both my concealed carry and my premise Residence Licenses has been CONTINUED it was signed by Inspector Bogle the commanding officer.

The letter also stated that, I had to contact you to schedule an appointment to come into the license Division. The is to process the restoration of my license.

I called but did not get any response, please advise.

87. On or about April 2, 2024, Plaintiff Raffique N. Khan received an e-mail from Defendant Joseph Astarita stating.

As per our phone conversation, Sgt. Herbert will give you releases for your firearms and your pistol licenses at 10:00 am on 4/3/24. You are to appear at 1 Police Plaza, Rm 110A.

88. After unsuccessful attempts to recover his firearms and his licenses/permits on February 8th, 29th and March 1st, 2024, Plaintiff

Raffique N. Khan was unable to obtain some kind of required release from the ADA to recover his weapons.

89. Plaintiff Raffique N. Khan attempted to contact the Licensing Division several times by phone and E-mail but did not get a response until April 2, 2024, Defendant Joseph Astarita sent him an E-mail stating that his weapons permits have been reinstated but h will have to go to One Police Plaza to pick it up together with one of the releases.
90. On or about April 2, 2024, Plaintiff Raffique N. Khan went to the Defendant NYPD property office in Brooklyn but was told that the ADA had to E-mail a release to the property office first, but the ADA was not available before the NYPD Property Office closed at 2 PM.
91. Defendant Joseph Astarita had instructed Plaintiff Raffique N. Khan to take the “letter” to the Property Offices to recover his weapons and that he had to contact the Kings County Assistant District Attorney once he was at the property office to get a second release.
92. On April 3, 2024, Plaintiff Raffique N. Khan took the letter first to One Police Plaza, but then he was forced to go to the Brooklyn Property office and finally to the Queens property Office. However, there was a notice on the Inventory sheet that required SSG Khan to obtain yet another release letter from the Licensing Division which he did obtain.
93. On or about April 3, 2024, Plaintiff Raffique N. Khan finally recovered his weapons.
94. The weapon SSG Khan recovered from the Property Office in Brooklyn had been damaged but the NYPD employee who returned the weapon was unable to explain the damage.
95. The carry weapon SSG Khan recovered was a Smith and Wesson Equalizer 9 MM bearing original serial Number PJH2036.

96. Numbers had been engraved on the magazine and the weapon itself. There's also a silver coating of paint on the weapon. The following is a true and accurate photo of the weapons as SSG Khan received them from the NYPD.



**FIRST CAUSE OF ACTION:**  
**VIOLATION OF PROPERTY RIGHTS SECURED UNDER THE NEW YORK**  
**STATE CONSTITUTION AND CIVIL RIGHTS LAW § 4**

**SEIZURE OF FIREARMS**

97. That the acts and conduct of the Defendants, jointly and/or severally, individually and/or collectively, in seizing property (a firearm for which Plaintiff Raffique N. Khan held a valid and current New York City Concealed Carry Handgun License (Exhibit 5(b), herein)), interfered with and effectively denied Plaintiff his property rights.
98. New York Civil Rights Law § 4 states that “[a] well regulated militia being necessary to the security of a free state, the right of the people to keep and bear arms cannot be infringed.”
99. The property right(s) at issue, firearms and firearm licensing, are protected under the New York Civil Rights Law.
100. That the New York State Constitutional rights of Plaintiff Raffique N. Khan were and are being denied him as a result of the Defendants, jointly and/or severally, individually and/or collectively, ignoring the fact that at the time of arrest Plaintiff Raffique N. Khan held a valid Concealed Carry Handgun License and presented the same.
101. As a direct and proximate result of the actions of the Defendants, jointly and/or severally, individually and/or collectively, Plaintiff Raffique N. Khan has sustained and continues to sustain injury and damages including but not limited to, loss of his firearm property he has been caused to and suffered shock, embarrassment, anxiety and fear of unjust police action, which can only be justly compensated by an award of money damages in an amount to be determined by the trier of facts upon a trial of this action.

**REFUSAL TO RETURN SEIZED PROPERTY**

102. Defendants, jointly and/or severally, individually and/or collectively, have violated the property rights of Plaintiff Raffique N. Khan guaranteed to him under the N.Y.S. Constitution and Common Law.
103. Defendants, jointly and/or severally, individually and/or collectively, have created and are maintaining a policy and practice, an instruction to subordinate employees, which began a century ago with the “Sullivan” Act to deny licenses to carry firearms to people of color and racial; and ethnic minorities in violation of the rights guaranteed to all citizens by the New York State Constitution, the New York City Human Rights Law and New York State Human Rights Law.
104. The continued existence of the instruction to subordinates of this policy and practice within New York City executed and enforced by the NYPD is clearly demonstrated in the treatment of Plaintiff Raffique N. Khan with respect to the obstacles interposed by the NYPD to his efforts to recover his handgun which had been wrongfully seized during an illegal arrest following a racially motivated improper traffic stop.
105. That the acts and conduct of the Defendants, jointly and/or severally, individually and/or collectively, in refusing to return property for which Plaintiff Raffique N. Khan held a valid and current New York City Concealed Carry Handgun License (Exhibit 5(b) herein), interfered with and effectively denied Plaintiff his rights guaranteed under the New York State Constitution, the New York City Human Rights Law and New York State Human Rights Law.
106. As a direct and proximate result of the actions of the Defendants, jointly and/or severally, individually and/or collectively, Plaintiff Raffique N. Khan has sustained and continues to sustain physical injury and damages including but not limited to, loss of property and he has been caused to and suffered shock, embarrassment, anxiety and fear of unjust police action, which can only be justly compensated by an award of money

damages in an amount to be determined by the trier of facts upon a trial of this action.

107. As a result of the violation of the rights of Plaintiff Raffique N. guaranteed under the Second Amendment by Defendants, jointly and/or severally, individually and/or collectively, Plaintiff seeks to recover compensatory damages from the Defendants, jointly and/or severally, individually and/or collectively, in an amount to be determined by the trier of facts upon a trial of this action.
108. As a result of the violation of the rights of Plaintiff Raffique N. guaranteed under the Second Amendment by Defendants, jointly and/or severally, individually and/or collectively, Plaintiff seeks to recover punitive damages from the Defendants, jointly and/or severally, individually and/or collectively, in an amount to be determined by the trier of facts upon a trial of this action.

**SECOND CAUSE OF ACTION:  
FALSE ARREST AND FALSE IMPRISONMENT**

109. The serious charges filed against Plaintiff Raffique N. Khan in the Criminal Court of the City of New York alleging he committed the crimes of violating PL 265.03(3) Criminal possession of a weapon in the second degree (DQO), PL 265.01-B(1) Criminal possession of a firearm (DQO); PL 265.01 (1) Criminal possession of a weapon in the fourth degree; and AC 10-131(I) (3) Possession of pistol ammunition were patently false and known to be false at the time they were sworn to and filed by Defendant NYPD Officer Matthew S. Bessen. (EXHIBIT 9. Criminal Complaint)
110. The accusations of wrongful actions leveled against Plaintiff, Raffique N. Khan, were false and known or could have been known to Defendant NYPD Officer Matthew S. Bessen, Shield № 14934, at the time he signed the Criminal Complaint and/or Information.

111. The criminal charges prosecuted against Plaintiff Raffique N. Khan were made by Defendant NYPD Officer Matthew S. Bessen for an improper purpose: to cover up the lack of probable cause for the arrest of Plaintiff Raffique N. Khan.
112. New York Civil Rights Law § 8, requires that “[t]he right of the people to be secure in their persons, houses, papers and effects, against unreasonable searches and seizures, shall not be violated...”
113. The arrest and physical restraint of Plaintiff Raffique N. Khan were without probable cause or legitimate reason therefore constituted a violation of Plaintiff’s rights to be free from unreasonable searches and seizures.
114. There was no probable cause for the stop of Plaintiff Raffique N. Khan.
115. There was no probable cause for the arrest of Raffique N. Khan.
116. Defendants, individually and collectively, knew and had reason to know that their actions resulted in Raffique N. Khan being confined against his will and thus violated common law and New York Civil Rights Law.
117. As a consequence of Defendants’ wrongful actions, Plaintiff Raffique N. Khan was deprived of his freedom, and suffered shock, embarrassment, anxiety and fear of unjust police action, which can only be justly compensated by an award of money damages in an amount to be determined by the trier of facts upon a trial of this action.
118. The suffered shock, embarrassment, anxiety and fear of unjust police action, which can only be justly compensated by an award of money damages in an amount to be determined by the trier of facts upon a trial of this action suffered by Plaintiff Raffique N. Khan as a result of Defendants, jointly and/or severally, individually and/or collectively, deliberately violating Plaintiff’s Constitutional and civil rights calls for an award of punitive damages in an amount to be determined by the trier

of facts upon a trial of this action all together with costs and attorneys' fees.

### **THIRD CAUSE OF ACTION: ABUSE OF PROCESS**

119. Defendants, jointly and/or severally, individually and/or collectively, acting under color of state law, have engaged in actions and abuses which have deprived Plaintiff Raffique N. Khan of rights, privileges and immunities secured by the New York State Constitution, the New York City Human Rights Law and New York State Human Rights Law constituting a conspiracy and liable for Respondeat Superior, *infra*.
120. Abuse of process is evidenced by Defendants prolonged imprisonment of the Plaintiff Raffique N. Khan, confiscation of his property for which he had a lawful and current New York City Concealed Carry Handgun License, initiation of criminal process, and prosecution of the Plaintiff.
121. Defendants, jointly and/or severally, individually and/or collectively, did violate the rights of the Plaintiff Raffique N. Khan guaranteed to him under Constitution of the United States by initiating an improper bias motivated traffic stop, then subsequently causing SSGT Khan to be arrested, processed, imprisoned. and criminally charged with false crimes by Defendant NYPD Officer Matthew S. Bessen acting in accordance with practices, policies and instruction required by NYPD.
122. Defendants, jointly and/or severally, individually and/or collectively, had a duty to conduct a prompt, full and fair investigation of the incident surrounding the bias-motivated traffic stop of Plaintiff, Raffique N. Khan, his false arrest, false imprisonment, and malicious prosecution, yet no such investigation was ever initiated much less conducted.
123. Failure to conduct such an investigation into the circumstances of the mistreatment of Plaintiff Raffique N. Khan evidenced malice, gross recklessness, intention and/or indifference without excuse or



justification in violation of the New York State Constitution, the New York City Human Rights Law and New York State Human Rights Law.

124. As a direct and proximate result of NYPD actions, Plaintiff Raffique N. Khan suffered shock, embarrassment, anxiety and fear of unjust police action, which can only be justly compensated by an award of money damages in an amount to be determined by the trier of facts upon a trial of this action, as well as punitive damages, costs and attorney's fees.

**FOURTH CAUSE OF ACTION: NEW YORK STATE CONSTITUTION AND  
NEW YORK STATE CIVIL RIGHTS LAW §§ 40-C AND 79-N**

125. Defendants, jointly and/or severally, individually and/or collectively, engaged in actions and abuses which have deprived Plaintiff Raffique N. Khan of rights protected under New York Civil Rights Law.
126. Raffique N. Khan was and is entitled to equal protection of the law as defined by the New York State Constitution and Civil Rights Law.
127. Plaintiff Raffique N. Khan was stopped and questioned because of his race, creed, color and/or national origin, there being no articulable probable cause to stop a servicemember (with a purple heart on his license plate) who did nothing other than be dark in color while in the County of Kings, State of New York.
128. Plaintiff Raffique N. Khan's civil rights to be free from unlawful search, seizure and property, specifically the right to bear arms, was infringed by Defendants.
129. Plaintiff Raffique N. Khan was targeted without probable cause because of his race, color and/or creed for the purpose of a deprivation of rights.
130. Defendants, individually and collectively, knew that Plaintiff Raffique N. Khan was targeted without probable cause because of his race, color and/or creed yet continued to harm him by stop, arrest and seizure of persons or property to harm him on such ground.

131. Defendants violated the Civil Rights Law when Plaintiff and his property were seized after Plaintiff produced valid licensing for which equal protection of the law would have allowed Plaintiff to be free of seizure or carry firearms without infringement of his rights had he not been of a darker color, a different race or creed than Caucasian.
132. Defendants, jointly and/or severally, individually and/or collectively, did harass and violate the rights of the Plaintiff Raffique N. Khan guaranteed to him under New York State Constitution, New York Civil Rights Law, New York Civil Rights Law and the New York City Human Rights Law and New York State Human Rights Law, by initiating an improper bias motivated traffic stop, then subsequently causing SSGT Khan to be arrested, processed, imprisoned. and criminally charged with false crimes by Defendant NYPD Officer Matthew S. Bessen acting in accordance with practices and policies fostered and condoned by the NYPD.
133. Defendants, jointly and/or severally, individually and/or collectively, had a duty to conduct a prompt, full and fair investigation of the incident surrounding the bias-motivated traffic stop of Plaintiff, Raffique N. Khan, his false arrest, false imprisonment, and prosecution, yet no such investigation was ever initiated much less conducted.
134. As a direct and proximate result of NYPD actions, Plaintiff Raffique N. Khan suffered shock, embarrassment, anxiety and fear of unjust police action, which can only be justly compensated by an award of money damages in an amount to be determined by the trier of facts upon a trial of this action, as well as punitive damages, costs and attorney's fees.

#### **FIFTH CAUSE OF ACTION: CIVIL CONSPIRACY**

135. Defendants, jointly and/or severally, individually and/or collectively, did intend and conspire to deprive Plaintiff Raffique N. Khan of his New York State Constitutional, New York State Common Law and New York

State Civil Rights Laws, and caused such deprivation of rights by acting in concert to unlawfully arrest, falsely imprison, and criminally prosecute SSGT Khan.

136. Defendants, jointly and/or severally, individually and/or collectively, did intend and conspire to deprive Plaintiff Raffique N. Khan of his Constitutional rights by acting in concert to unlawfully arrest, falsely imprison, and criminally prosecute Plaintiff according to a well-established pattern, practice, widespread custom and/or policy of long standing duration in the NYPD.
137. Said practice required the cooperation of all Defendants, individually and collectively, to continue the policy of arresting, seizing and intimidating persons of color, Plaintiff being a different race or creed than Caucasian persons that are otherwise free to carry firearms or be free from unlawful search, seizure and infringement of civil rights.
138. Defendants, jointly and/or severally, individually and/or collectively, failed to train those involved in reporting, intervening, punishing and/or prosecuting violations of constitutional rights such as those which occurred with Plaintiff Raffique N. Khan.
139. Defendants, jointly and/or severally, individually and/or collectively, engaged in a pattern, practice, widespread custom, usage and/or policy of charging and prosecuting persons who were victims of improper or illegal traffic stops.
140. As a consequence of Defendants' wrongful actions, Plaintiff Raffique N. Khan was deprived of his freedom, and suffered shock, embarrassment, anxiety and fear of unjust police action, which can only be justly compensated by an award of money damages in an amount to be determined by the trier of facts upon a trial of this action.

141. The shock, embarrassment, anxiety and fear of unjust police action, suffered by Plaintiff Raffique N. Khan as a result of Defendants, jointly and/or severally, individually and/or collectively, deliberately violating Plaintiff's Constitutional and civil rights calls for an award of punitive damages in an amount to be determined by the trier of facts upon a trial of this action all together with costs and attorneys' fees.

**SIXTH CAUSE OF ACTION:  
NEW YORK STATE LAW MALICIOUS PROSECUTION**

142. Defendants, jointly and/or severally, individually and/or collectively, lacked reasonable suspicion to stop and detain Plaintiff and further lacked probable cause for making the initial traffic stop of Plaintiff Raffique N. Khan, nor any probable cause to arrest him, process, imprison, and prosecute him.
143. Immediately upon the unfounded and improper initial bias-based traffic stop of Plaintiff Raffique N. Khan, Defendant NYPD Officer Matthew S. Bessen knew or had reason to know that Plaintiff Raffique N. Khan had a valid and current New York City Concealed Carry License and there was no probable cause to arrest Plaintiff and, therefore, such arrest was illegal and in violation of Plaintiff's Constitutional rights.
144. Defendants, jointly and/or severally, individually and/or collectively, violated Plaintiff's Constitutional right to be free from illegal arrest, illegal confinement and/or illegal seizure of property.
145. The subsequent malicious prosecution of Plaintiff Raffique N. Khan following his wrongful arrest, which was conducted by Defendants with knowledge that Plaintiff had been subject to an improper, illegal bias-based traffic stop then wrongfully arrested, was wrongfully pursued by Defendants, jointly and/or severally, individually and/or collectively, under color of law, customs, usages and/or statutes of the State of New York.

146. Defendants, jointly and/or severally, individually and/or collectively, deprived Plaintiff Raffique N. Khan of his New York State Constitutional and New York State Civil Right to protection from unlawful search and seizure by falsely charging him criminally and then prosecuting him without any substantial credible evidence to support the allegations of the criminal complaint.
147. The criminal prosecution of Plaintiff was summarily dismissed after an adjournment.
148. There was no probable cause for criminal prosecution of Plaintiff.
149. There was no probable cause for maintaining the criminal prosecution of the plaintiff.
150. As a consequence of Defendants' wrongful actions, Plaintiff Raffique N. Khan was deprived of his freedom, and suffered shock, embarrassment, anxiety and fear of unjust police action, which can only be justly compensated by an award of money damages in an amount to be determined by the trier of facts upon a trial of this action.
151. The shock, embarrassment, anxiety and fear of unjust police action suffered by Plaintiff Raffique N. Khan as a result of Defendants, jointly and/or severally, individually and/or collectively, deliberately violating Plaintiff's Constitutional and civil rights calls for an award of punitive damages in an amount to be determined by the trier of facts upon a trial of this action all together with costs and attorneys' fees.

**SEVENTH CAUSE OF ACTION: COMMON LAW AND CONSTITUTIONAL  
LAW PROPERTY RIGHT VIOLATIONS**

152. Plaintiff has a constitutionally protected liberty interest in his property. See NYS Const. Art. I §§ 6, 7.
153. A special respect for individual liberty in the home has long been part of our culture and our law.

154. That Defendants issued process against Plaintiff, seizing lawfully possessed firearms from his person and then demanding the same from Plaintiff's home, thereby violated the New York State constitutional rights and liberty interests of the Plaintiffs without due process of law. See, e.g., NYS Const. Art. I §§ 1, 6-7.
155. Plaintiff's rights to life, liberty, property and due process of law as guaranteed by New York State were infringed and remain infringed to date. See, e.g., NYS Const. Art. I, § 11; N.Y. Civ. Rights Law §§ 9-15.
156. Defendants deliberate violation of the New York State Constitutional Rights and New York Civil Rights Law calls for an award of compensatory and punitive damages in an amount to be determined by the trier of facts upon a trial of this action all together with costs and attorneys' fees.

#### **EIGHTH CAUSE OF ACTION: ASSAULT AND BATTERY**

157. Plaintiff realleges the above paragraphs as if stated in full.
158. New York City Police Department, New York City, is liable for the actions of its police officers.
159. Defendants, individually and collectively, intended to physically batter Plaintiff and assault the Plaintiff in the arrest of the Plaintiff.
160. Defendants' actions were not justified and Plaintiff did not provide consent for said actions.
161. Defendants deliberate violation of the Plaintiff calls for an award of compensatory and punitive damages in an amount to be determined by the trier of facts upon a trial of this action.

#### **NINTH CAUSE OF ACTION: *RESPONDEAT SUPERIOR***

162. Plaintiff realleges the above paragraphs as if stated in full.

163. New York City Police Department, New York City, is liable for the actions of its police officers.
164. NYC Police Officers were acting in the scope of their duty while arresting, charging and prosecuting Plaintiff.
165. Defendants New York City and New York City Police Department are vicariously liable for the above intentional torts of the individually named Defendants.
166. Defendants were acting within the scope of their duties in arresting Plaintiff.
167. Defendants were acting within the scope of their duties in criminally prosecuting Plaintiff.
168. Defendants, individually and collectively, knew that there was no valid legal basis for the stop of Plaintiff.
169. Defendants, individually and collectively, knew that there was no basis for the prosecution or continued prosecution of Plaintiff.
170. Defendants deliberate violation of the New York State Constitutional Rights and New York Civil Rights Law calls for an award of compensatory and punitive damages in an amount to be determined by the trier of facts upon a trial of this action all together with costs and attorneys' fees.

### **PRAYER FOR RELIEF**

WHEREFORE, Plaintiff Raffique N. Khan demands judgment against the Defendants, jointly and/or severally, individually and/or collectively, as follows:

ON THE FIRST COUNT, Violation of Property Rights Secured under the New York State Constitution and Civil Rights Law § 4, damages,

punitive damages, costs and disbursements in an amount no less than \$1,000,000.00 together with reasonable attorney's fees;

ON THE SECOND COUNT, False Arrest and False Imprisonment, damages, punitive damages, costs and disbursements in an amount no less than \$1,000,000.00;

ON THE THIRD COUNT, Abuse of Process, damages, punitive damages, costs and disbursements in an amount no less than \$1,000,000.00;

ON THE FOURTH COUNT, New York State Civil Rights Law §§ 40-c and 79-n, damages, punitive damages, costs and disbursements in an amount no less than \$1,000,000.00 together with reasonable attorney's fees;

ON THE FIFTH COUNT, Civil Conspiracy, damages, punitive damages, costs and disbursements in an amount no less than \$1,000,000.00;

ON THE SIXTH COUNT, Malicious Prosecution, damages, punitive damages, costs and disbursements in an amount no less than \$1,000,000.00;

ON THE SEVENTH COUNT, Common Law and Constitutional Law Property Right Violations, NYS Const. Art. I §§ 6, 7, damages, punitive damages, costs and disbursements in an amount no less than \$1,000,000.00 together with reasonable attorney's fees;

ON THE EIGHTH COUNT, Assault and Battery, damages, punitive damages, costs and disbursements in an amount no less than \$1,000,000.00;

ON THE NINTH COUNT, *Respondeat Superior*, damages, punitive damages, costs and disbursements in an amount no less than \$1-10,000,000.00 together with reasonable attorney's fees and equitable relief as cited below:



AGAINST the Defendants, jointly and/or severally, individually and/or collectively, on the Causes of Action stated in an amount of compensatory damages to be determined by the jury on the trial of this action;

AGAINST the Defendants, jointly and/or severally, individually and/or collectively, on the Causes of Action stated, punitive damages, where appropriate and allowed, in an amount to be determined by the jury on the trial of this action; together with

DECLARATORY RELIEF that the Defendants, jointly and/or severally, individually and/or collectively, on the Causes of Action stated did target black and/or minority persons for legal firearm ownership within the County of Kings, State of New York and that such was a product of the training of the Defendant New York City and its agency New York City Police Department;

all together with such other and further relief as this Court shall believe is just and proper under the circumstances together with the costs of disbursements in this action including an award of attorneys' fees.

DATED AT: Central Islip, NY  
June 14, 2024

/s/ *Cory H. Morris*

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THE LAW OFFICES OF CORY H. MORRIS  
*Attorney for the Plaintiff*  
Office & P.O. Address  
863 Islip Avenue  
Central Islip, New York 11722  
Phone: (631) 450-2515

email [Cory.H.Morris@protonmail.com](mailto:Cory.H.Morris@protonmail.com)

Victor John Yannacone, jr, Esq., *of counsel*  
Email: [vyannacone@yannalaw.com](mailto:vyannacone@yannalaw.com)